

22STCV03688 22STCV03688

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-08-28

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C734%2C08%2F28%2F2026

Source SHA-256: 8be99c8e70651177a83600ae4b1d2db2ac80ed43739a0cd46899c70c2b2b5c73

Case Number: 22STCV03688 Hearing Date: August 28, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:10 PM on August 27, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on August 27, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff alleges that Defendant

lessors misrepresented that the commercial warehouse was usable for Plaintiff's trucking, warehousing, and logistics business, but because the premises were not ADA compliant, it was not eligible for a certificate of occupancy. This resulted in Plaintiff not being able to operate its business, which caused

businesses losses.

Defendant

300 West Artesia, L.P. filed a Cross-Complaint alleging that Cross-Defendants breached the Lease.

Defendant/Cross-Complainant

300 West Artesia, L.P. moves for an order compelling Defendant to appear for deposition and answer questions.

TENTATIVE RULING

The

hearing on Defendant/Cross-Complainant 300 West Artesia, L.P.'s motion for an order compelling Defendant to appear for deposition and answer questions is CONTINUED to September 30, 2026 to be heard with the motion for stay of proceedings.